Aparna Ashram Society & Anr. vs Mr.Mohan Jha & Ors. on 8 November, 2024

Author: Chandra Dhari Singh

Bench: Chandra Dhari Singh

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*     IN THE HIGH COURT OF DELHI AT NEW DELHI
%                          Reserved on :              27th Augu
                           Pronounced on:           8th Novembe
+     RFA 9/2022, CM APPL. 1010/2022, CM APPL. 1011/2022, CM
      APPL. 17527/2022, CM APPL. 17652/2022, CM APPL.
      19125/2024,     CM APPL. 25610/2024, CM APPL.
      25611/2024, CM APPL. 25612/2024, CM APPL. 25613/2024 &
      CM APPL. 37046/2024

      APARNA ASHRAM SOCIETY & ANR.       .....Appellants
                  Through: Mr. Ashish Dholakia, Senior
                           Advocate with Mr.Shubhoday
                           Banerjee, Mr. Sanjay Khanna,
                           Mr.Pragya               Bhushan,
                           Mr.Karandeep Singh and Mr.
                           Tarandeep Singh, Advocates.
                  versus

      MR.MOHAN JHA & ORS.                          .....Resp
                  Through:             Mr. Sanjeev Anand, Sr.
                                       with Mr. Arush Khanna a
                                       Vaibhav Mehra, Advocate
                                       to R-5.
                                       Mr Sanjay Katyal, Stand
                                       Counsel for DDA.
                                       Dr. Surya Prakash, Advo
                                       Aparna The Deity.
CORAM:
HON'BLE MR. JUSTICE CHANDRA DHARI SINGH

                           JUDGMENT
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CHANDRA DHARI SINGH, J.

1. The instant regular first appeal has been filed by the appellants under Section 96 of the Code of Civil Procedure, 1908 (hereinafter as 'CPC') seeking the following reliefs:

> "(a) call, summon and peruse the records of the Ld. Trial Court of Sh. Jay Thareja, Ld. ADJ-07, South-East District, Saket Courts, Delhi in Civil Suit No.7447/2016 titled as "Apama Ashram Vs. Mohan Jha & Ors. ";

(b) admit the present appeal;

(c) set-aside the impugned judgment and Decree both dated 04.12.2021 and observations made therein passed by the Ld. Trial Court of Sh. Jay Thareja, Ld. ADJ-07, South East District, Saket Courts, Delhi in Civil Suit No.7447/2016 titled as "Apama Ashram Vs. Mohan Jha & Ors.";

(d) remand back the present matter to the Ld. Trial Court for its adjudication on the issues framed in the suit;

(e) award the cost of the appeal in favour of the appellants and against the respondents.

(f) pass any other order(s) or relief, which this Hon'ble Court may deem fit, just and proper in the facts and circumstances of the case in favour of the appellants and against the respondents, in the interest of justice."

FACTUAL MATRIX

2. The appellant no.1/plaintiff (hereinafter as 'appellant Society/plaintiff') was given possession of the property bearing plot number A-12, New Friends Colony, New Delhi (hereinafter as 'suit property') after voluntary donation by one Shri Gurcharan Singh Sethi in the year 1976. The appellant no.2 is the elected president of the appellant society.

3. In the year 2009, a suit bearing no. 7447/16 seeking permanent injunction was filed by the appellant society through its authorized representative (hereinafter as 'AR') namely Mr. K.S. Pathania against the respondents alleging the respondents' intention to take possession of the suit property illegally.

4. During the proceedings before the learned ADJ, South-East District, Saket Courts, Delhi (hereinafter as 'learned Trial Court/Court below') various applications were filed by the parties for different concerns, and the same were pending for adjudication before the learned Court below.

5. One such application dated 10th September, 2009 under Section 151 of the Code of Civil Procedure, 1908 (hereinafter as 'CPC') was filed by the appellant Society for replacing one Mr. Murali Chaudhary in place of Mr. K.S. Pathania and the same was allowed vide order dated 19th December, 2012, and therefore, Mr. Murali Chaudhary was replaced as the authorized representative.

6. In the year 2014, Mr. Pathania filed an application under Section 151 of the CPC for his substitution by stating to be the authorized representative of the appellant Society, however, the same was dismissed vide order dated 27th January, 2015.

7. Thereafter, multiple applications were filed by various persons stating to be the authorized representatives of the appellant Society and one such application was filed by one namely Mr. Subhash Dutta which was listed for pronouncement of orders on 4th December, 2021.

8. On 4th December, 2021, it is stated that the learned Trial Court dismissed the suit in its entirety by holding that the appellant society is not represented by an authorized person, and therefore, the suit cannot be tried.

9. Aggrieved by the same, the appellant Society has filed the instant regular first appeal seeking setting aside of the order dated 4th December, 2021.

PLEADINGS BEFORE THIS COURT

10. The appellant society has taken the following grounds in the pleadings for setting aside the impugned order.

> "A. Because the impugned judgment and decree is against the facts and based on conjectures and surmises and is liable to be set-aside.
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> B. Because the impugned judgment and decree is not tenable in the eyes of law and is not based upon the legal jurisprudence and hence is liable to be set-aside C. Because the impugned judgment and decree is based on the assumptions and presumptions of the Ld. Trial Court and hence is liable to be set-aside.
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> D. Because the impugned judgment dated 04.12.2021 is based upon conjectures and surmises which have been derived by the Ld. Trial Court based on its assumptions and presumptions and without the support of documents filed in the suit having evidentiary value or on documents or submissions having legal sanctity.
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> E. Because the impugned judgment dated 04.12.2021 is not based upon the ratio descendie of the precedents mentioned and referred to in the impugned judgment but the obiter dicta of the same.
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> F. Because the impugned judgment dated 04.12.2021 is not tenable in the eyes of law as it has been the precedent that no two suits have almost the same facts. The implementation of the pre-decided judgments/orders needs to be evaluated in accordance with the facts of the case in hand before the trial court and only those parts of the decided judgments/orders be applied which cannot be distinguished according to the facts of the case.
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> G. Because the Ld. Trial Court while passing the impugned judgment dated 04.12.2021 has adorned the judicial activism inasmuch as the Ld. Trial Court on one hand refused to take on record the "Brief Notes" filed on behalf of Ld. counsel for the applicant Sh. Subhash Dutta (appellant no.2 herein) on 04.12.2021 on the ground

that the same do not pass the muster of the law laid down in 'Kiran Chhabra Vs. Pawan Kumar Jain, (2011) 178 DL T 462' and also that the same had been filed at the nth hour, without even supplying a copy to the other side; however, on another side, the same was kept on the file. Needless is to mention that the Hon'ble High Court of Delhi in the above-mentioned judgment being C.S.(OS) No.1671/2009 decided on 14.02.2011 titled as 'Kiran Chhabra & Anr. Vs. Pawan Kumar Jain & Ors." had laid down certain guidelines with respect to the structure of the written arguments. However, while passing the said judgment/order, the Hon'ble Mr. Justice J.R. Midha of Hon'ble High Court of Delhi in his wisdom abstained from directing the Registrar of this Hon'ble Court to implement this direction by bringing suitable/ appropriate modifications into the Delhi High Court Rules. Therefore, at best this judgment can be treated as precedent for seeking guidance for preparing the written arguments. H. Because the impugned judgment dated 04.12.2021in itself has not been structured in the form of judgment. This is clear from reading the portion of the order-sheet dated 04.12.2021 of the suit C.S. No.7447/2016 recorded at 10 AM by the Ld. Trial Court. The Ld. Trial Court recorded "In order to pass the requisite order in this suit ....." meaning thereby the ld. Trial Court intended to pass certain orders on the pending applications and not the judgment for deciding the suit. Pertinent is to mention here that at the time of passing the impugned judgment, the Ld. Trial Court was insesien with following applications filed in the suit:-

a. Application U/s 151 CPC filed by the appellant no.2 Sh. Subhash Dutta on 03.03.2020 seeking permission to pursue the suit on behalf of the appellant no.1 as it's A.R.; b. Application U/o 1 Rule 10 CPC filed on behalf of Smt. Kumkum Chaudhary through Aparna the Deity, seeking impleadment as defendant no. 7 in the s· aid suit; c. Application U/o VI Rule 17 CPC and Order XXIII Rule 3 CPC filed on behalf of Sh. Murli Chaudhary;

d. Application filed by Sh. B.S. Pathania, seeking review of the order dated 30.11.2018 in the suit;

e. Application filed by the defendants no.2 to 5 seeking expeditiously disposal of the suit;

This ground is further fortified from the order-sheet dated 18.11.2021 passed by the Ld. trial Court in the suit. The relevant portion of the order dated 18.11.2021 after the appearances of the parties and their advocates read as under:

"The arguments qua the application filed by Sh. Subhash Dutta under section 151 of CPC, 1908 as well as all the other pending applications have been heard List for clarification/order, on 04.12.2021 at 04.00 pm."

I. Because the impugned judgment dt. 04.12.2021 is liable to be set-aside as the parties were not given an opportunity to address their arguments on the disposal of the suit itself. Leave aside the

arguments, the parties to the lis in the present suit were not even notified by the Ld. Trial Court at the time of addressing their arguments on their respective applications that they are required to address their arguments on the maintainability of suit itself rather than maintainability of the applications.

J. Because the impugned judgment dt. 04.12.2021 is liable to be set-aside as the same is based on hyper technicalities and not on the merits of the case. It is trite that endeavor of the court ought to be to decide the issue on merits and not on hyper technicalities.

K. Because the impugned order/judgment is cryptic. Order 20 Rule 2 of C.P.C., 1908 clearly says that a judgment must address on each issues of the suit. The impugned judgment is bereft of discussing the issues. The impugned judgment is bereft of issue-wise finding by the Ld. Trial Court. The impugned judgment is sans the legal analysis of the issues leave aside the material propositions.

L. Because the decree dated 04.12.2021 drawn on the basis of impugned judgment dt. 04.12.2021 is in itself cryptic. This is clear from the text and formation of the impugned judgment itself. The Ld. Trial Court has mentioned a number of 'Footnotes' in the impugned judgment. The impugned judgment is bereft of specific mentioning as to whether the contents of the footnotes are part of the impugned judgment or not. Further the effect of said footnotes is to be taken only as reference or to be relied upon for arriving at a just conclusion in terms of the impugned judgment, is in itself a big confusion. The decree-sheet 3S drawn by the Ld. Trial Court is not in terms of the practice and procedure of Delhi High Court Rules. The decree is silent about the important details which ought to be mentioned in the same. M. Because the impugned judgment dt. 04.12.2021 is bad in law as the Ld. Trial Court while passing the impugned judgment dt. 04.12.2021 has relied upon the file of C.S. No.7634/2016 titled as Sh. Alok/Sh. Murli Chaudhary &Anr. Vs. Laxman & Ors. decided by the Court of Ld. ADJ-04, South District, Saket Courts, New Delhi on 27.08.2016 which was · not part of the judicial record in the suit. Moreover, the parties and especially the plaintiffs were not given appropriate opportunity to clarify its stand qua the observations/ orders/judgments/decree passed therein as well as the appeal and S.L.P. arising therefrom, especially in the light of the admitted facts that plaintiff society was not even a party to the civil suit no.7634/2016. It is trite that for applying an order/judgment or any observation/castigation passed in an order/judgment upon a person (living or juristic), the person must have been party to the proceedings. Neither the plaintiff/appellant no.1 society was party to the C.S. No.7634/2016 nor to the orders/judgments passed therein or to the appeal and SLP arising therefrom, hence any observation/castigation passed in the said suit, ought not to be applied to the detriment of the plaintiff society in the suit at hand. .. Furthermore the order/judgment passed in C.S . No.7634/2016 was not inrem but in personam. Therefore, the approach of the Ld. Trial Court in applying the observations made in C.S. No.7634/2016 is erroneous and illegal. The same is beyond the jurisdiction of the Ld. Trial Court. Hence the impugned judgment is liable to be set-aside on the ground that the reasoning arrived at by the Ld. Trial Court is based upon extraneous circumstances.

N. Because the Ld. Trial Court relied upon RFA No.7842/2016 and SLP (C) No.36062/2016 arising out of C.S. No.7634/2016 titled as Sh. Alok/Sh. Murli Chaudhary & Anr. Vs. Laxman & Ors. and orders passed therein to arrive at a conclusion that a document filed therein being Resolution dated

05.04.2006 of the alleged Governing Council of the plaintiff society inter-alia had the names of Sh. Subhash Dutta, Sh. Murli Chaudhary and Sh. K.S. Pathania on left side and the signatures of Sh. K.S. Pathania on the right side and therefore the current applicant Sh. Subhash Dutta (appellant no.2 herein) are accomplices, belonging to a faction that has already been found by way of the said judgments and order, to consist of persons, not duly associated with the plaintiff (para no.5 of the impugned judgment).

O. Because the impugned judgment/order dated 04.12.2021 is liable to be set-aside as the material proposition/issue in the present matter/ suit was not about the composition/office bearers of the plaintiffs society. The infightings between the members of the Governing Council of plaintiff society/appellant no.l has never been the material proposition before the Ld. Trial Court, hence such observations of the Ld. Trial Court about the office bearers/members of the Governing Council of the society in the impugned judgment are liable to be set-aside. Moreover, no evidence had been led in the matter to arrive at such conclusion and/or observation, hence it is abundantly clear that these observations are based upon conjectures and surmises and are beyond the pleadings and prayers and so beyond the scope of the jurisdiction of the Ld. Trial Court. The Ld. Trial Court ought to have desisted from castigating the image of the plaintiff society/appellant no.l herein. Such aspersions passed by the Ld. Trial Court in the impugned judgment do not withstand the judicial scrutiny and hence is liable to be set-aside. Such castigating remarks are in the nature of innuendos. The judicial ethic says that before affecting the reputation of a person on the basis of certain documents being part of pre-decided suit, to which the said person was not even party, a suitable opportunity must be given to the said person to explain the contents of the said document before arriving at the conclusion. It is admitted fact from the impugned judgment itself that neither the applicant Sh. Subhash Dutta/appellant no.2 herein nor the person named Sh. K.S. Pathania were given any opportunity by the Ld. Trial Court to address their arguments on the resolution dated 05.04.2006. The act of Ld. Trial Court in arriving at conclusion adverse to the interest of the applicant Sh. Subhash Dutta/appellant no.2 herein and Sh. K.S. Pathania without giving them an opportunity of being heard, is in disregard to their fundamental right as enshrined in the Constitution of India, 1950 being "RIGHT TO BE HEARD/AUDI ALTERM PARTEM'.

P. Because the above aspersions casted by the Ld. Trial Court on Sh. K.S. Pathania cannot even survive as the Ld. Predecessor of the Trial Court vide order dated 19.12.2012 had allowed Sh. Murli Chaudhary to represent the plaintiff society being its A.R. instead of Sh. K.S. Pathania. The effect of the said order was that Sh. K.S. Pathania was estopped from. attending the matter/suit on behalf of the plaintiff society/appellant no.1 herein and the advocate engaged by him was got discharged. Although Sh. K.S. Pathania filed an application U/s 151 CPC seeking his appointment as A.R. of the plaintiff society in place Sh. Murli Chaudhary on the basis of subsequent developments/resolution passed by the plaintiff society, however, the ld. Predecessor court of the trial Court vide order dated 27.01.2015 dismissed the said application of Sh. K.S. Pathania. Hence, it is crystal clear that at the time of passing of such adverse remarks/aspersions by the ld. Trial Court, Sh. K.S. Pathania remained absent. Hence, the observation of the ld. Trial Court qua Sh. K.S. Pathania ought to be outrightly vexed. The observations ought to be deleted from impugned judgment.

Q. Because the Ld. Trial Court while passed the impugned judgment dt. 04.12.2021 in para no.5, has refer:red to an order No.ROS(SE)/ 5766/1973/1181 dated 09.12.2020 passed by the Registrar of Societies, South East District, Govt. of NCT Delhi, relied upon by Sh. Subhash Dutta/appellant no.2 herein, to arrive at a conclusion that the said order cannot be accepted to be correct/legal order with certain footnotes. The Ld. Trial Court has exceeded its jurisdiction in arriving at this conclusion. Needless is to mention that the said order dated 09.12.2020 of Registrar of Societies was neither the issue in hand nor any evidence was led with regard to it. None of the parties to the lis either denied the said order nor adduced any evidence in rebuttal of the same or any evidence to prove that the said order was passed on the basis of misrepresentation or incorrect facts. The Ld. trial Court exceeded its jurisdiction in holding the said order to be an incorrect or illegal order. This is an outreach of jurisdiction and ought to be deprecated. The Ld. Trial Court had breached the judicial discipline. The Ld. trial court ought not to have decided on the legality of the said order dt. 09.12.2020 without going into the merits of the facts and circumstances/ documents giving rise to the passing of the said order 09.12.2020 by the Registrar of Societies (in fact that order is 04.12.2020 and not 09.12.2020 as recorded in the impugned judgment). Moreover, the legality/tenability of the order No.ROS(SE)/5766/1973/1181 dated 09.12.2020 was not before the Ld. Trial Court. Therefore, the observation of the Ld. Trial Court qua the abovementioned order ought to be expunged being beyond jurisdiction and consequently the impugned order is liable to be set-aside on this ground also. R. Because the impugned judgment dt. 04.12.2021 is liable to be set-aside as technically the plaintiff society/appellant no.1 herein remained unrepresented at the time of dismissal of the suit. Para no.4 of the impugned judgment clearly mentions that the erstwhile A.R. namely Sh. Murli Chaudhary of the plaintiff society was excluded from representing it w.e.f. 03.12.2019, while the application of appellant no.2 Sh. Subhash Dutta seeking permission to pursue the suit on behalf of the plaintiff society as its A.R. was yet to be decided, therefore, the ld. Trial Court before dismissing the suit ought to have issued court notice to the plaintiff society stating therein the fact that it (plaintiff society) remained unrepresented through a duly authorized A.R. In the absence of such court notice, it is imperative that the plaintiff society/ appellant no.1 herein remained unaware about the proceedings of the Ld. Trial Court. Therefore, the impugned judgment dt. 04.12.2021 by which the suit is dismissed, clearly hits the root cause of the right of the society as the plaintiff society. Although the Ld. Trial Court in the impugned judgment in para no. 7 clearly mentions that the plaintiff society (being a juristic person) remains unrepresented by a natural person w.e.f. 03.12.2019, yet in its wisdom instead of issuing the court notice to the plaintiff society, giving it an opportunity to get represented/ remove the said deficiency, passed an adverse order against it. This goes to hit the fundamental principle or 'RIGHT TO BE HEARD' or 'RIGHT TO BE DULY REPRESENTED' of the juristic person.

S. Because the Ld. Trial Court grossly erred in dismissing the suit of the appellants/plaintiff society in absence of its due representation by a duly authorized representative and therefore, the impugned judgment dt. 04.12.2021 is liable to be set-aside.

T. Because the Ld. Trial Court in para no.1 of the impugned judgment dt. 04.12.2021 has relied upon certain judgments. The judgments relied upon are distinguishable from the facts of the present case. The judgment titled as "K.R Impex V. Punj Lloyd (2019) SCC OnLine Del 6667, being C.S.(Comm.) 646/2016 decided by the Hon'ble High Court of Delhi on 08.01.2019, is a commercial suit with its

distinct facts and circumstances. In terms of the Commercial Courts Act, 2015 (Amended upto date) and the purpose for which said Act was promulgated, expediency in disposing of commercial disputes. on the basis of the admitted pleadings/transactions was imperative. In the said case of K.R. Impex, the defendant company, although disputed the liability in its Written Statement, however, in its statement of account/ledger, produced before the Hon'ble Court U/o 11 Rule 14 of CPC, certain claim/amount due to the plaintiff was shown. The Hon'ble Court took such figures as mentioned in the statement of account/ledger of the defendant company as its admitted liability and therefore passed the judgment & decree in terms thereof under order XII rule 6 CPC. No· such facts and circumstances were there in the present suit before the Ld. Trial Court. The plaintiff society/ appellant no.1 herein filed the present suit for permanent and mandatory injunctions in respect of the suit property being A-12, Friends Colony, New Delhi against the defendants no.1 and 5/respondents herein. The defendant no.6 in the original suit (DDA) was the performa party. The plaintiff society later on amended the suit to clarify the address of the suit property as A-12, New Friends Colony (East), New Delhi. The relief claimed was that of mandatory and permanent injunctions against the defendants no.1 to 5. During the course of its trial, the suit was further amended by the plaintiff to incorporate the prayer of seeking possession from the defendants no.2 to 5, when the subsequent fact emerged from the pleadings that the defendant no.l had handed over the physical possession of the suit property to the defendants no.2 to 5 in breach of the temporary injunction order (later withdrawn). Hence the facts of the present case are clearly distinguishable from the facts of the suit of K.R. Impex relied upon by the Ld. Trial Court.

U. Because the observation of the Hon'ble High Court of Delhi in case of K.R. Impex, stated in foregoing para, as regards "H. It is the bounden duty of the court, to at all stages of a suit, ensure that no litigant, for own benefit and to the prejudice of his opponent, by making a far;ade of a case or a defence, is not permitted to buy time of the court and which is always to the prejudice of other deserving cases" and further observation made in para no.25 of the judgment of the said case "the court on each and every date of hearing has to ensure that no litigation which is deadwood remains pending on the roster of the court at the cost of other deserving litigations and it is the duty of the court to eliminate the deadwood on each and every stage" as relied upon by the Ld. trial Court in the impugned judgment, are further distinguishable from the facts of the cases relied upon and the facts of the present suit. In the relied upon judgment in case titled 'A.N. Kaul Vs. Neerja Kaul &Anr., (2018) SCC OnLine Del 9597' being C.R.P. No.189/2017 decided on 03.07.2018 by the Hon'ble High Court of Delhi, the defendants were in possession of the suit property of the plaintiff and admitted his ownership. The Hon'ble Court on the basis of such admission in the pleadings decreed the suit under order XII Rule 6 CPC. In another relied upon judgment in case titled as 'Dr. Zubair UL Abidin and Ors. Vs. Sameena Abidin@ Sameena Khan, (2014) 214 DLT 370' being FAO(OS) 427/2013 decided by the Hon'ble High Court of Delhi on 14.07.2014, the Ld. Division Bench set- aside the order of the Ld. Single Bench vide which the Ld. Single Judge had deferred the decision of deposit of ad- valorem court fee on the quantum of the damages claimed till the disposal of the suit. The defendant therein moved an application U/o 7 Rule 11 CPC seeking rejection of the plaint on the basis of under valuation of the suit and non deposit of the ad-valorem court fee on the claim of the plaintiff. The facts of the above mentioned relied upon case laws are entirely distinguishable from the facts of the case in hand. Neither impugned judgment/order mentions about the dismissal of the suit on the ground of under valuation of the subject matter of the suit property/relief claim nor has

the suit been dismissed under order VII rule 11 CPC on the ground of deficit court fee. The impugned judgment dt. 04.12.2021 is bereft of the fact that the plaintiff was given an opportunity to amend the suit/prayer and giving proper valuation to the relief claimed or that the plaintiff failed to pay the ad-valorem court fee upon the value of the reliefs claimed despite being given the opportunity. Hence the dismissal of the suit by the Ld. Trial Court is without specifically mentioning the provision under order VII rule 11 CPC, although with the passing remarks, in itself is illegal and therefore, the impugned order is liable to be set-aside itself.

V. Because the approach of the Ld. Trial Court in dismissing the suit under Order XV Rule 1 of CPC, 1908 at the stage of cross examination of PW-1 is erroneous and illegal and hence liable to be set-aside. The provision of Rule 1 under Order XV CPC says "where at first hearing of a suit it appears that the parties are not at issue on any question of law or of fact, the court may at once pronounce judgment". Admittedly the suit was not at the stage of first hearing. The suit was filed in the year 2009. The suit maneuvered through various routes and reached at the stage of cross examination of PW -1. Hence the provisions of order XV Rule 1 CPC have been wrongly applied by the Ld. Trial Court. The legislature in their wisdom had deliberately mentioned the words 'first hearing'. The words 'first hearing' as appearing in the said provision cannot be stretched to a stage of cross examination of PW -1. The Trial Court grossly erred in doing the same. Therefore, the impugned order/judgment is liable to be set-aside on this ground itself.

W. Because neither of the party in the suit has ever raised the issue as regard to the admission of any fact in the suit and also because the provisions of Order 12 Rule 6 were neither raised by any party nor had been subjected to discussion and argument before the Trial Court. In the entire previous order sheet, there had been clear contentions of both the parties, as such the question of a decree on admission under order 12 Rule 6 does not arise and neither this provision was available and applicable in the facts and circumstances of the case.

X. Because the applicability of the Order XV has neither been raised or discussed by either party and all of a sudden in the impugned judgment the Ld. Trial Court has wrongly reached to the conclusion that the parties are not at issue. Whereas there remains 14 Issues framed by the Ld. Trial Court and further Additional Issues framed by the Ld. Trial Court which ought to have been decided by recording the evidence which has been abruptly left in between by the Trial Court and passing the impugned judgment and decree. Y. Because the impugned Judgment and Decree is beyond the scope of the pleading of the parties and issues framed by the Ld. Trial Court. In fact, in the entire impugned judgment there is absolutely nothing from the pleading of the suit and Issues as framed in the suit. As such, the judgment and decree is liable to be set-aside.

Z. Because the evidence led by plaintiff by examining PW1 K. S. Pathania even remained un-conclusive as the cross- examination was not complete and the impugned judgment failed to address whether the commenced evidence was required to be completed or have been aborted prematurely by passing the impugned judgment and decree without adhering to the procedure of law as laid in the Civil Procedure Court and the High Court Rules framed in this regard.

AA. Because al-through the pleadings of the parties in the present suit, the admitted fact is that the allottee/auction purchaser of the suit property namely Sh. Gurcharan Singh Sethi intended to donate the suit property to the plaintiff society (Aparna Ashram). The original owner namely Sh. Gurcharan Singh Sethi had even sought permission from defendant no.6/DDA/ respondent no.6 herein. The respondent no.6/DDA had granted conditional permission. Later on, the allotment of the land was cancelled by the DDA, which is restored subsequently. It is further the admitted fact arising from the pleadings that the LRs of original owner Sh. Gurcharan Singh Sethi i.e. respondents no.2 to 5 herein/ defendants no.2 to 5 in the suit, had preferred a Writ Petition (Civil) before the Hon'ble High Court of Delhi being W.P.(C) No.1949/1997 wherein the Hon'ble High Court of Delhi vide its order dated 26.11.2003 observed that the LRs. of original owner Sh. Gurcharan Singh Sethi i.e. respondents no.2 to 5 herein/ defendants no.2 to 5 in the suit, are devoid of the title in the suit property as their predecessor-in-interest had already expressed his intention to donate the suit property in favour of the Aparna Ashram Society i.e. plaintiff/ appellant no.2 herein. The defendants no.2 to 51 respondents no.2 to 5 herein did not challenge the said order and hence it attained finality. Furthermore it is the admitted fact that the suit property remained in the possession of the plaintiff society into which the defendant no.1 (Pujari/Priest) was admitted as permissive user. Therefore, the assumption of the Ld. Trial Court that the plaintiff has filed the present suit on frivolous grounds is based on conjectures and surmises. The dismissal of the suit by the ld. Trial Court on this ground, though not specifically mentioned, however, referred to, is illegal, unlawful and hence is liable to be set-aside. The plaintiff society based on the evidences could substantiate and prove its case.

BB. Because, had the Ld. Trial Court passed a reasoned judgment deciding the issues/material issues/additional issues involved/ framed in the suit on merits, the entire evidences of the parties needs to be led and only then the same could have been analyzed on the touch stone of judicial scrutiny. The absence of the same, the haste of the Ld. Trial Court in dismissing the suit on un-established preponderance of probabilities, clearly points to the fact that the impugned judgment dt. 04.12.2021 will fail the muster of the scrutiny of the Appellate Court and hence is liable to be set-aside.

CC. Because the Ld. Trial Court in para no.9 of the impugned judgment dt. 04.12.2021, though has observed "it is not within the jurisdiction of this court to make any deep inquiry into the inter-se dispute between the members of the plaintiff', yet the effect of the impugned judgment dt. 04.12.2021 goes to the fact that the Ld. Trial Court has held Sh. K.S. Pathania and Sh. Subhash Dutta(appellant no.2 herein) as incapable to represent the plaintiff society thereby indirectly benefiting the other group of Sh. Laxman Chaudhary and Smt. Kumkum Chaudhary whose application for direct impleadment, although denied, yet the benefit of the observations in the impugned judgment dt. 04.12.2021 coupled with aspersions with regard to order dated 09.12.2020 of Registrar of Societies (stated supra) would lead to inter-se disputes between the members of the plaintiff society. Therefore, the impugned judgment dt. 04.12.2021 is liable to be set-aside.

DD. Because the Ld. Trial Court has completely gone out of track by not considering pleading of the parties and chose to pass order and observation which was not part of the pleading. That by making some observation, a serious illegality has been caused to the judicial process of law where a Trial

Court is bound to constrained itself within the four comer of the pleading and the file only, any observation beyond the pleading and the file is illegal, unlawful and not binding upon the parties in regard to observations which may are likely to be affected by those observations. The observation of Ld. Trial Court as regard to the judgment and decree passed in Civil Suit No. 7634 of 2016 decided on 27.08.2016 are against the law because the parties to the suit were not before the Trial Court as such passing of observation at their back regarding the suit is not binding upon those parties subject-matter of suit no. 7634 of 2016. Accordingly, all observations regarding this suit made in the impugned judgment by the Trial Court deserves to be expunged. The observation of the Ld. Trial Court as regard to Order Dated 04.12.2020 passed by the Registrar of Societies are against the l19 principal of law and natural justice because the parties to the said order of Registrar of Societies were not before the Trial Court, as such any observation in this regard are not admissible in the eyes of law, the same deserves to be expunged by this Hon'ble High Court of Delhi.

EE. Because the Civil Revision arising out of the civil Suit were pending before the Hon'ble High Court. The CWP bearing No. 3650/1997 in respect of Order of the Registrar of Societies dated 04.12.2020 is also pending before the Hon'ble High Court and now fixed for 11.01.2022. As such, passing of impugned judgment and decree and making observation regarding the subject matter which is already pending before the Hon'ble High Court is beyond the jurisdiction of the Trial Court and the impugned judgment and decree deserves to be set-aside on this ground. FF. Because the observation at Footnote No. 6 by the Ld. Trial Court can be termed as a miscarriage of justice for the reason neither the Ld. Trial Court was competent to make any comment over the Order Dated 29.04.2017 passed by the Court ofLd. ADJ-IV Saket and neither this was subjected in the suit which was dealt by the Ld. Trial Court. In fact, the Ld. Trial Court has misunderstood the entire dispute pertaining to inter-se Members of the Society and not the previous Court while passing the Order Dated 29.04.2017. The observation at Footnote No. 6 is totally out of pleading and out of subject-matter of the suit which was in the hand of the Ld. Trial Court and as such the observation at Footnote No. 6 in the impugned judgment and decree deserves to be expunged in the First Hearing itself.

GG. Because the impugned judgment dated 04.12.2021 is liable to be set-aside as Ld. Trial Court in its para no.9 has referred to a judgment titled as 'Vishwa Ahinsha Sangh Vs. Panchsheel Marketing Pvt. Ltd. reported as (2011) SCC OnLine Delhi 2691 being F.A.O. No.400/2006 and F.A.O. No.401/2006 decided on 05.07.2011, wherein Hon'ble High Court of Delhi opined that the core issue involved was landlord-tenant relation wherein the plaintiff society being landlord had filed suit through it's A.R. seeking possession. The appellant did not mention in his appeal that the A.R. who filed the suit was not a duly authorized A.R. The main issue was not inter-se dispute .between the office Bearers of the Society. Similarly, here in this case it has not been proved that the suit had not been filed by a duly authorized A.R. of the plaintiff society. Hence the referred case 1s distinguishable from the facts of the present case. HH. Because the ld. Predecessor of the trial court vide its order dated 03.12.2019 relying upon the judgment dated 27.08.2016 passed in C.S. No.7634/2016 and order dated 04.10.2016 passed by the Hon'ble High Court of Delhi in R.F.A. No.784/2016 and further order dated 16.12.2016 by Hon'ble Supreme Court of India in S.L.P.(C) No.36062/2016 titled as Alok/Sh. Murli Chaudhary & Anr. Vs. Laxman & Ors. held that Murli Chaudhary cannot represent Aparna Ashram Society. The Ld. Court in the said order further

observed that since this suit was filed through A.R. K.S. Pathania, who was later replaced by Murli Chaudhary vide order dated 19.12.2012, which is challenged in C.M.(Main) before Hon'ble High Court of Delhi. Therefore, in view of C.M.(Main) pending before Hon'ble High Court of Delhi, present suit is kept pending for awaiting the decision of Hon 'ble High Court of Delhi in the said C.M.(Main). The Ld. Court made clear that in case application of K.S. Pathania in the Hon'ble High Court of Delhi is dismissed, suit is not maintainable through Murli Chaudhary and same shall be liable to be dismissed. Meaning thereby decision of C.M.(Main) filed by K.S. Pathania remained sine qua non for· this suit. Therefore, the Ld. Trial Court ought to have waited for the. outcome of the Civil Misc. (Main) No.813/2015.

4. That the appellants seek indulgence of this Hon'ble Court to urge and argue and rely upon other grounds/documents at the time of hearing arguments on the present appeal.

5. That the main issues before this Hon'ble Appellate is whether the Ld. Trial Court has grossly erred in disposing of the suit in haste without going into the merits of the main issues. The Trial Court ought not to have reviewed the orders of its Predecessor Court without giving an opportunity to the plaintiffs/parties to clarify on the issue. The Ld. Trial Court exceeded its jurisdiction and overreached, assumed the jurisdiction when the trial court observed that order dated 09.12.2020 (actually 04.12.2020) passed by the Registrar of Societies (South East District), Govt. of NCT of Delhi in ROS(SE)/5766//1973/1181 was not a correct/legal order. The Ld. Trial Court was in grave error in casting aspersion on the registration/existence of the plaintiff society.

6. That the appellant no.1 is a society registered under the Societies Registration Act vide Registration bearing No.S-

5766/73-74 dated 25.05.1973 issued by Registrar of Societies, CPO Building, Kashmere Gate, Delhi having registered office at A-50, New Friends Colony (East), Mathura Road, New Delhi and being a juristic person, it requires a natural person to represent itself before the court of law and therefore, Sh. Subhash Dutta has been authorized by the appellant no.1 society to represent it before courts of law and especially in this appeal before this Hon'ble Court vide Resolution dated 03.01.2022. Original Resolution dated 03.01.2022 in favour of Sh. Subhash Dutta is annexed as ANNEXURE-N.

7. That certified copies of the evidence by way of affidavit dated 08.12.2011, examination-in-chief dated 21.01.2012 and examination-in-chief of PW-1 dated 24.02.2012 are annexed as ANNEXURE-O (COLLY.).

8. That the appellants have not filed any other similar Regular First Appeal either before this Hon'ble Court or before the Hon'ble Supreme Court of India. The present appeal is within its limitation period. The requisite court fee on the present appeal has been paid."

11. Pursuant to the above said grounds, the respondents have filed the reply and a convenience compilation. The summary of reply/written submissions reads as under:

3. That a perusal of the aforementioned facts would make it abundantly clear that:

(a) The Suit Property, which was allotted by the DDA in the name of Mr. Gurcharan Singh Sethi, was never transferred in favor of the Appellant No. 1.

(b) The infightings between different factions of the Appellant Society, with regard to its representation, have caused serious prejudice to the rights and entitlements of the Respondents 2 to 5 to enjoy the Suit Property.

(c) That as on 4 November 2011 and 4 July 2013, the Suit Property has been mutated, and a subsequent lease deed ("New Lease Deed") (ANNEXURE-R-8 and ANNEXURE-R-10 of the present Written Submissions, respectively) has been executed by the DDA in favour of Respondents No. 2 to 5, and the wives of Respondents 3 and 4. This fact is also affirmed by the DDA in their written statement before the Ld. Trial Court.

4. That it is further submitted that the entire purpose of the proceedings is now academic and infructuous since the New Lease Deed is not subject matter of challenge in the Suit or this Appeal, and, therefore, the present Appeal should be dismissed on this ground alone.

5. That, without prejudice to the aforesaid, the Respondents 2 to 5 seek to highlight the objections raised against the present Appeal, in brief, for the sake of convenience of this Hon ble Court, herein below.

6. THAT THE APPEAL IS NOT VALIDLY INSTITUTED SINCE THE APPELLANT NO. 1 IS NOT REPRESENTED BY ANY NATURAL PERSON 6.1 That the Appellant No. 1, which is claimed to be a society registered under the Societies Registration Act, has filed the present Appeal through its alleged Authorized Representative/alleged President, Mr. Subhash Dutta ("Alleged A.R." or "Appellant No. 2"). The authority to file the present Appeal has been given by, one, K.S. Pathania, who has himself been held to be not associated with the Society in view of, inter-alia: (a) the Order dated 19 December 2012 passed in the Suit, and (b) the Order dated 27 January 2015 passed in the Suit, as held in the Judgment. Therefore, the said grant of authority is itself defective, rendering the Appeal defective as well. That the Judgment has also extensively dealt with and held that neither Mr. K.S. Pathania, nor the Appellant No. 2, Subhash Dutta, were ever authorised to represent the Appellant No. 1. (Para 5 to 9 of the Judgment).

6.2 That it is further crucial to note that for the purposes of representation of the Appellant No. 1 in the present Appeal, the Appellant No. 2 has preferred an accompanying application under Section 151 of CPC, seeking permission to represent the Appellant No. 1 Society as its authorized representative, which has been registered as CM No.1011/2022, and remains pending adjudication. Therefore, in addition to what the Ld. Trial Court has observed in its Judgment, to hold the Appellant No. 2 and KS Pathania, to belong to a faction not associated with the Appellant Society, it is clear that the application filed before this Hon ble Court is also defective, without authority, and liable to be dismissed.

7. OWNERSHIP OF THE PROPERTY WAS NEVER TRANSFERRED TO THE APPELLANT(S) 7.1 That it is an admitted position that the ancestor of the Respondents 2 to 5 had intended to donate the Suit Property. However, upon expressing such intention to the DDA, the DDA put forth certain conditions, which were never complied with as it involved monetary considerations. Since no such monetary considerations were made or conditions put forth by the DDA were fulfilled, no such transfer of the title of the Suit Property was done.

7.2 That, in any case, in view of Section 123 of Transfer of Property Act, 1882 read with Section 17 of Registration Act 1908, no transfer of property can happen, by way of a gift, unless by way of a registered document/deed.

8. SETTING ASIDE OF THE IMPUGNED ORDER AND THE REMAND BACK TO THE TRIAL COURT WOULD CAUSE GRAVE PREJUDICE:

8.1 As has been explained above, that the Respondents 2 to 5 by virtue of the New Lease Deed dated 4 July 2013 are the true and rightful owners of the Suit Property, and the Appellants have failed to show that they have acquired ownership or possession of the Suit Property. That in the event this Hon ble Court proceeds to allow the appeal and remands the matter back to the Ld. Trial Court, it would again revive the battle of representation between the factions of Subhash Dutt and Laxman Chaudhary, since there is no current person authorised to represent the Appellant Society. This will cause immeasurable delay and prejudice to the Respondents, who have acquired lawful rights over the Suit Property. The Suit was filed in 2009 (15 years ago), and given the extant circumstances between the two factions, the Suit will likely continue for a considerable length of time and the Respondents 2 to 5 would be left languishing for justice.

8.2 That the Respondent Nos. 2 to 5 have no interest in the internal rivalry between the various factions of the Appellant No. 1 Society. The Respondents 2 to 5 have consistently stated that it is not of any interest to them as to who is representing the society as they are completely unconcerned with the same. Their only interest lies in their entitlement over the Suit Property. The Respondents 2 to 5, per se, have no objection if some of the observations pertaining the validity/authority of Appellant No. 2 to represent Appellant No. 1 are expunged, subject to the Appellants being agreeable to getting the Appeal disposed of on the ground that the rights of the Respondents 2 to 5 stand crystallized by way of the New Lease Deed dated 4 July 2013 executed by the Respondent No. 6/DDA in their favour.

9. That in view of the aforesaid, it is humbly prayed that this Hon ble Court may kindly be please to dismiss the captioned Appeal.

SUBMISSIONS (On behalf of the appellant Society)

12. Mr. Ashish Dholakia, learned senior counsel appearing on behalf of the appellant Society submitted that the learned Trial Court erred in exercising its powers under Order XII Rule 6 of the CPC as there is no admission in the plaint and the issues were already framed by the learned court below.

13. It is submitted that the learned Trial Court erred in holding that no challenge was made to the registered deed dated 4th July, 2013 whereas, the appellant society has already challenged the same by filing another suit.

14. It is submitted that the learned Trial Court erroneously placed reliance on the orders passed in another suit filed by one Mr. Murli Chowdhry against Laxman Chowdhry whereas the authorized representatives of the appellant Society were not even party to the said proceedings.

15. It is submitted that the suit property was gifted to the appellant Society by the predecessor of the R2-R5, however, the said respondents obtained a perpetual lease in their favor by colluding with the respondent no.7/DDA.

16. It is submitted that the learned Trial Court erred in not appreciating the settled position of law where the admission on Order XII Rule 6 of the CPC is only warranted when there are clear and unambiguous admissions made by the party whereas in the instant case, specific issues were framed and evidence were ought to be led in that regard, and there were no clear or categorical admissions.

17. It is submitted that the learned Trial Court erred in not abiding by the tests laid down for passing judgment on admissions and therefore, the impugned order is liable to be set aside.

18. It is submitted that even though the resolution dated 5th April, 2006 appointed one Mr. Murali Chowdhry and Mr. Alok Chowdhry as the authorized representative, however, the same was done for other purposes and not for the suit, therefore, the abovesaid resolution was not conclusive.

19. It is also submitted that Mr. Pathania and Mr. Dutta are the authorized representatives of the appellant Society and the said issue has attained finality by virtue of order dated 4th December, 2020 passed by the Registrar of the Societies, whereby, both of them were recognized as the member and President of the appellant society respectively.

20. Therefore, in view of the foregoing submissions, the learned senior counsel submitted that the present appeal be allowed and the impugned order be set aside.

(On behalf of the respondent nos.2-5)

21. Per Contra, Mr. Sanjeev Anand, the learned senior counsel appearing on behalf of the respondent nos.2-5 vehemently opposed the instant appeal submitting to the effect that the suit property was never transferred in favor of the appellant Society and thus, the impugned order has been passed in accordance with the law.

22. It is submitted that there are huge infights between the various factions of the appellant Society and the same has already caused serious prejudice to the rights and entitlements of the respondent no.2-5 to enjoy the suit property.

23. It is submitted that the suit property was mutated on 4th November, 2011 and 4th July, 2013 and a subsequent lease has been executed by the respondent DDA in favor of the legal heirs of Mr. Gurcharan Singh Sethi.

24. It is submitted that the new lease deed is not the subject matter of the challenge in the suit and therefore, the present appeal may be dismissed on the said ground alone.

25. It is submitted that the appellant Society has not filed the instant appeal validly as the same is stated to be filed by the alleged President namely Mr. Subhash Dutta, however, in the proceedings before the learned Court below, one Mr. Pathania was stated to be the authorized representative.

26. It is submitted that the ownership of the suit property was never transferred to the appellant Society as the conditions put forth by the respondent DDA for transfer of the same were never complied and therefore, the title of the suit property was never transferred.

27. It is submitted that the said factum of transfer of the ownership was duly apprised to the learned Court below, hence, the judgment was passed on the basis of the same.

28. Therefore, in view of the foregoing submissions, the learned senior counsel submitted that the present appeal being bereft of any merit may be dismissed.

ANALYSIS AND FINDINGS

29. Heard the learned counsel for the parties and perused the records.

30. The instant appeal is admitted.

31. It is the case of the appellant Society that the learned Court below erroneously dismissed the suit filed by them on the basis of alleged admission and therefore, the said order is bad in law as the same does not take into account the entirety of the matter. It has been contended that there exists issues which are triable in nature which the learned Trial Court ought to have taken into consideration and therefore, the impugned order is liable to be set aside as the same contravenes the settled position of law for passing judgment on admissions under Order XII Rule 6 of the CPC.

32. In rival submissions, the above said contentions were rebutted by stating that the members of the appellant society have created factions amongst themselves and therefore, there is no authorized representative. Furthermore, it is stated that the ownership of the suit property was never transferred to the Society and therefore, mutation of a subsequent lease dated 4th July 2013 transfers the title of the suit property in favor of the respondent no.2-5 and the suit was rightly dismissed by the learned court below.

33. In the instant appeal, the primary contention of the appellant Society is that the learned Trial Court erroneously passed the impugned order on the basis of alleged admission, therefore, attracting the contours of Order XII Rule 6 CPC which was not required at that stage as the learned Trial Court had already proceeded with examination of the witnesses.

34. At this stage, this Court finds it imperative to reproduce the impugned order. The relevant parts of the same reads as under:

> "2. In view of the aforesaid position of law, I had examined the record of this suit, with the assistance of the Ld. Advocate for the parties, on 18.11.2021 and interalia found
>
> (a) that this suit was filed in the name of the plaintiff (a society registered under the Societies Registration Act, 1860) by Sh. K.S. Pathania, by claiming that he was authorized to file this suit in the name of the plaintiff, by virtue of a resolution dated 10.07.2008, passed by the Governing Council of the plaintiff; (b) that vide Order dated 19.12.2012, a Ld. Predecessor Judge, after hearing the parties at length, had replaced Sh. K.S. Pathania and ordered that henceforth, Sh. Murli Chaudhary will have the authority to pursue this. suit on behalf of the plaintiff; (c) that the said Order dated 19.12.2012, was not immediately challenged by Sh. K.S. Pathania before the Hon'ble High Court of Delhi; (d) that as a consequence thereof, during 19.12.2012 to 24.05.2014, this suit was pursued by Sh. Murli Chaudhary, on behalf of the plaintiff, without any interference by Sh. K.S. Pathania; (e) that on 24.05.2014, Sh. K. S. Pathania had filed an application under Section 151 of CPC, 1908, seeking permission to pursue this suit on behalf of the plaintiff, by claiming that the Order dated 19.12.2012 was erroneous and by claiming that during 19.12.2012 to 24.05.2014 (particularly on 26.04.2014), he had again been authorized by a duly constituted Governing Council of the plaintiff, to pursue this suit on behalf of the plaintiff; {f) that the"said application of Sh. K.S. Pathania was dismissed by another Ld. Predecessor Judge, on 27.01.2015; (g) that upon dismissal of the said application, Sh. K.S. Pathania had challenged the previous Order dated 19.12.2012 and the Order dated 27.01.2015, before the Hon'ble High Court of Delhi, by way of CM(M) No.813/2015, Sh. K.S. Pathania & Anr. v Mohan Jha & Ors.

(henceforth CM(M) No.813/2015) and (h) that vide Order dated 27.11.2019, passed in CM(M) No.813/2015, the Hon'ble High Court of Delhi, after finding the conduct of Sh. K.S. Pathania to be dilatory, had made it clear that there is no stay qua the proceedings of this suit and directed this Court to proceed with this suit, as expeditiously as possible.

3. In addition to the aforesaid, I had inter-alia found that vide Order dated 03.12.2019, another Ld. Predecessor Judge, after taking note of (i) the judgment dated 27.08.2016, passed by the Court of Ld. ADJ-04, South District, Saket Courts, New Delhi in CS No.7634/2016, Sh. Alok/Sh. Murli Chaudhary & Anr. v Laxman & Ors., (ii) judgment dated 04.10.2016, passed by the Hon'ble High Court of Delhi in RFA No. 784/2016, Sh. Alok/Sh. Murli Chaudhary & Anr. v Lax man & Ors. and

(iii) the Order dated 16.12.2016, passed by the Hon'ble Supreme Court in SLP(C) No.36062/2016, Sh. Alok/Sh. Murli Chaudhary & Anr. v Laxman & Ors., had concluded that since, in the said series of judgments and order, Sh. Murli Chaudhary had been held to be never duly associated with the plaintiff, Sh. Murli Chaudhary cannot be permitted to pursue this suit on behalf of the plaintiff. Also, I had inter-alia found that having drawn the said conclusion qua the authority of Sh. Murli Chaudhary to pursue this suit on behalf of the plaintiff, in the Order dated 03.12.2019, the Ld. Predecessor Judge, instead of instantly dismissing this suit, for want of any authorized person to pursue this suit on behalf of the plaintiff, had simply adjourned this suit, awaiting further Order(s) of the Hon'ble High Court of Delhi in CM(M) No.813/2015 qua the authority of Sh. K.S. Pathania, to pursue this suit on behalf of the plaintiff.

4. In addition to the aforesaid, I had also inter· alia found that since the exclusion of Sh. Murli Chaudhary, as the representative of the plaintiff in this suit w.e.f. 03.12.2019, Sh. Subhash Dutta has come forward and filed an application under Section 151 of CPC, 1908, on 03.03.2020, seeking permission to pursue this suit on behalf of the plaintiff.

5.In my view, the aforesaid application, the arguments qua which were heard on 18.11.2021, is liable to be dismissed because a perusal of (a) the plaint of CS No.7634/2016, Sh. Alok/Sh. Murli Chaudhary & Anr. v Laxman & Ors. (henceforth 'CS No.7634/2016'), decided by the Court of Ld. ADJ-04, South District, Saket Courts, New Delhi, on 27.08.2016, (b) the copy of resolution dated 05.04.2006 of the alleged Governing Council of the plaintiff (filed in CS No.7634/2016)2 inter· alia bearing the names of Sh. Subhash Dutta3 , Sh. Murli Chaudhary and Sh. K.S. Pathania on left side and the signatures of Sh. K.S. Pathania on the right side4, (c) the judgment dated 27.08.2016, passed by the Court of Ld. ADJ· 04, South District, Saket Courts, New Delhi in CS No.7634/2016, (d) judgment dated 04.10.2016, passed by the Hon'ble High Court of Delhi in RFA No.784/2016, Sh. Alok/Sh. Murli Chaudhary & Anr. v Laxman & Ors. and (e) the Order dated 16.12.2016, passed by the Hon'ble Supreme Court in SLP(C) No.36062/2016, Sh. Alok/Sh. Murli Chaudhary & Anr. v Laxman & Ors., clearly reveals that Sh. K.S. Pathania, Sh. Murli Chaudhary and the current applicant, Sh. Subhash Dutta are accomplices, belonging to a faction 5 that has already been found by way of the said judgments and order, to consist of persons, not duly associated with the plaintiff and because in the wake of the said judgments and order, the order No. ROS(SE)/5766/1973/1181 dated 09.12.2020 passed by the Registrar of Societies, South-East District, Government of NCT of Delhi, relied upon by Sh. Subhash Dutta, cannot be accepted to be a correct/legal order.6 Thus, the aforesaid application is dismissed.

6. The first cascading effect of the dismissal of the aforesaid application is the review of the Order dated 06.03.2021, whereby this Court, through the undersigned, had allowed an application under Order XXII Rule 4 of CPC, 19087 under the wrong impression that on that day Sh. A.K: Gupta, Ld. Advocate was representing the plaintiff whereas the truth was that on that day, he was only representing Sh. Subhash Dutta, a person wanting to be the representative of the plaintiff. Since, the said Order was passed under a wrong impression and thus suffers from an error apparent on record, the said Order is reviewed and impleadment of Smt. Shelly Sethi, Sh. Kuber Sethi and Sh. Nanak Sethi as the LRs of the defendant no.3, is withdrawn.

7. The second cascading effect of the dismissal of the aforesaid application is that in this suit, this Court continues to not have any natural person to represent the plaintiff w.e.f. 03.12.2019. In my view, the only legal consequence of the said scenario, in light of the positive direction given to this Court by the Hon'ble High Court of Delhi vide Order dated.27.11.2019, passed in CM(M) No.813/2015, to expeditiously dispose of this suit, is that this suit has to be dismissed. Thus, this suit is dismissed. At this stage, it is clarified that this suit is also liable to be dismissed (a) because it was instituted by Sh. K.S. Pathania, who, as stated earlier in this judgment, never had the requisite authority to represent the plaintiff, in this Court or elsewhere8 and (b) because in this suit, the plaintiff has not raised any challenge qua the registered lease deed dated 04.07.2013, executed by the defendant no.6, DDA in favor of the defendants no.2 to 5, during the pendency of this suit, which further legitimizes the claim of the defendants no.2 to 5 qua the suit property viz. A- 12, Friends Colony (East), New Delhi and that as an alternative to what has been said in the first two sentences of this paragraph, this suit shall also be treated to have been dismissed on account of the said reasons.

8. Before parting with this Order, it is necessary to bring closure to all the pending applications of this suit. The application filed by Aparna the Deity through Smt. Kurftkum Chaudhary, under Order 1 Rule 1 0 of CPC, 1908, seeking impleadment as defendant no.7 in this suit, is dismissed as infructuous. The applications filed by Sh. Murli Chaudhary under Order VI Rule 17 of CPC, 1908 and under Order XXIII Rule 3 of CPC, 1908, are dismissed because it has been settled all the way till the Hon'ble Supreme Court that Sh. Murli Chaudhary never had the authority to represent the plaintiff. The application filed by Sh. B.S. Pathania, seeking review of the Order dated 30.11.2018, is dismissed because in view of the dismissal of this suit by way of this Order, the said application pales into insignificance. Lastly, the application filed by the defendants no.2 to 5, seeking expeditiously disposed off this suit as per the Order dated 26.04.2011, passed by the Hon'ble High Court of Delhi in FAO No.327/201 0, Aparna Ashram v Mohan Jha & Ors., is disposed off, as infructuous.

9. Now, before finally parting with this Order, I find it necessary to clarify (a) that in view of the judgment of the Hon'ble High Court of Delhi in Vishwa Ahimsa Sangh v Panchsheel Marketing Pvt. Ltd. (2011) sec Online Del 2691 it is not within the jurisdiction of this Court to make any deep inquiry into the inter-se dispute between the members of the plaintiff; (b) that apart from the above-noted reasons, the plaintiff deserves to be non-suited because the conduct of all its agents/representatives (Sh. K.S. Pathania and Sh. Murli Chaudhary) and proposed agent/representative (Sh. Subhash Dutta) till date, falls within the four corners of Section 41 (i) of the Specific Relief Act, 1963, which requires this Court to look into the conduct of the agents of a plaintiff, seeking reliefs of injunctions from this Court;10 and (c) that I have refrained from imposing costs upon the plaintiff, only because the actual wrongdoers in this suit are Sh. K.S. Pathania and Sh. Murli Chaudhary, who for a good part of the life of this suit were masquerading as representatives of the plaintiff."

35. Upon perusal of the aforesaid contents of the impugned order, it is made out that the learned Court below had dismissed the suit filed by the appellant Society by stating two reasons, firstly being that Mr. Pathania never had the requisite authority to file and the suit and represent the

plaintiff/appellant Society before the Court and secondly being that the suit property has already been transferred in favor of the respondent nos. 2-5 vide a lease deed dated 4th July, 2013.

36. While dismissing the suit, the learned Trial Court relied upon the orders stemmed from separate proceedings and the details of the same are as follows:

> findings made by the learned ADJ-04, South district, Saket Courts, New Delhi in CS 7634/2016, Judgment dated 14th October, 2016 passed by this Court in RFA bearing no. 784/2016, Order dated 16th December, 2016 passed by the Hon'ble Supreme Court in SLP(C) no. 36062/2016.

37. Furthermore, the impugned order also points out how the suit pending before the learned Court below did not have any legal representative to represent the plaintiff due to alleged feud between the society members, therefore, deeming it necessary to dismiss the same.

38. In this regard, the learned senior counsel for the appellant Society/plaintiff submitted that after substitution of Mr. Pathania with one Mr. Murali Chowdhry, the appellant society had meeting, whereby, it was decided that Mr. Pathania and Mr. Dutta will be representing the appellant society and therefore, they had respectively filed their substitution application, however, the same were wrongly rejected on the basis of the CS 7634/2016, however, the said case does not have any bearing on the locus standi of both the individuals.

39. Furthermore, the learned senior counsel also contended that the said orders did not bind either Mr. Pathania or Mr. Dutta not to be part of the appellant Society and therefore, judgment on the pretext of no representation on behalf of the appellant Society is bad in law as the admission has not been made by the party in the said regard.

40. Before delving into the aspect of whether the said contentions hold any water or not, this Court deems it appropriate to briefly explain the scope and intent behind the judgment passed on admissions as provided under Order XII Rule 6 of the CPC.

41. The interpretation of the said provision has been subject to the judicial scrutiny where it has been held time and again that the admission should be unambiguous, clear, unconditional and unequivocal in order to pass a judgment under Order XII Rule 6 of the CPC.

42. The settled position of law as reiterated in a catena of judgments makes the said relief as a discretion upon the Civil Courts where the concerned Court need to be satisfied that there is no fact which is needed to be proved on account of alleged admissions and the Court can pass a judgment, however, if the plaint and the written statement itself indicates that there are disputed questions of fact involved in the case regarding which two different versions are set out, the Court is required to ascertain the facts to settle the factual controversy.

43. In Shantez v. Applause Bhansali Films Pvt. Ltd. Company, 2009 SCC OnLine Bom 405, the Division Bench of the Bombay High Court delved into the aforesaid aspect and held as under:

"4. The learned Counsel further relied upon the judgment in the case of Uttam Singh Dugal and Co. Ltd. v. Union Bank of India, (2000) 7 SCC 120 : AIR 2000 SC 2740 to buttress his submission that a decree on admission as contemplated under Order XII Rule 6 of the Code is wide enough to include an admission of fact in the pleadings or otherwise whether orally or in writing. On the basis of any of this, the Court could pass a decree on admission. The provision is capable of wide construction but it has to be applied in strict sense i.e. the ingredients specified under this provision must be satisfied before a decree can be claimed by the Applicant under this provision. The admission made may be in the pleadings or otherwise which would include documents or any other material which is on the Court file but it must be unambiguous and definite admission. It is not proper for the Court to pass a decree on inference. In fact, in absence of an unambiguous and definite admission of liability and quantum, it would be difficult for the Court to pass a decree on such basis. It will be useful to make a reference to the case of Raj Kumar Chawla v. Lucas Indian Services, 2006 (129) Delhi Law Times 755 where the Court discussed the intent and scope of the term "admission" as contemplated under Order XII, Rule 6 of the Code, held as under:--

"5. The provisions of Order XII are intended to provide expeditious grant of decree in favour of a plaintiff in a suit or proceedings where the defendant has made any admission in the pleadings or otherwise, orally or in writing of any amount due. The plaintiff would be entitled to a decree on the basis of such admission without waiting for completion of the trial. The provisions of Order XII, Rule 6 were incorporated by way of amendment. The legislative object of these provisions is to curtail the period for determination of disputes between the parties to a suit and ensure that a decree on admission is passed without any unnecessary hindrance. The expression „Admission has been given a wider meaning and connotation so as to take within its ambit admissions made by a party in pleadings or otherwise, orally or in writing. These provisions thus are capable of liberal construction and without imposition of any unreasonable restriction, must be permitted to operate but the Courts have to be careful while passing a decree on admission. The Court essentially should look into the fact that all essential ingredients of an admission are satisfied before such a decree is passed in favour of any of the parties to the suit. Admission has to be unambiguous, clear and unconditional and the law would not permit admission by inference as it is a matter of fact. Admission of a fact has to be clear from the record itself and cannot be left to the interpretative determination by the Court, unless there was a complete trial and such finding could be on the basis of cogent and appropriate evidence on record. Rule 6 of Order XII certainly enables a party to obtain a speedy judgment fully or partially to which according to the admission of the defendant the plaintiff is entitled to. In the case of the Uttam Singh Duggal and Co. v. Union Bank of India, (2000) 7 SCC 120 : AIR 2000 SC 2740 the Court while explaining the scope and ambit of these provisions held as under: "Learned counsel for the appellant contended that Order XII, Rule 6 comes under the heading „admissions and a judgment on admission could be given only after the opportunity to the other side to

explain the admission, if any, made; that such admission should have been made only in the course of the pleadings or else the other side will not have an opportunity to explain such admission, that even though, the provision reads that the Court may at any stage of the suit make such order as it thinks fit effect of admission, if any, can be considered only at the time of trial; that the admission even in pleadings will have to be read along with Order VIII, Rule 5(1) of Civil Procedure Code and Court need not necessarily proceed to pass an order or a judgment on the basis of such admission but call upon the party relying upon such admission to prove its case independently, that during pendency of other suits and the nature of contentions raised in the case, it would not be permissible at all to grant the relief before trial as has been done in the present case; that the expression „admissions made in the course of the pleadings or otherwise will have to be read together and the expression „otherwise will have to be interpreted ejusdem generis.

As to the object of the Order XII, Rule 6, we need not say anything more than what the legislature itself has said when the said provision came to be amended. In the objects and reasons set out while amending the said rule, it is stated that „where a claim is admitted, the Court has jurisdiction to enter a judgment for the plaintiff and to pass a decree on admitted claim. The object of the Rule is to enable the party to obtain a speedy judgment at least to the extent of the relief to which according to the admission of the defendant, the plaintiff is entitled". We should not unduly narrow down the meaning of this Rule as the object is to enable a party to obtain speedy judgment. Where other party has made a plain admission entitling the former to succeed, it should apply and also wherever there is a clear admission of facts in the face of which, it is impossible for the party making such admission to succeed.

The next contention canvassed is that the resolutions or minutes of meeting of the Board of Directors, resolution passed thereon and the letter sending the said resolution to the respondent bank cannot amount to a pleading or come within the scope of the Rule as such statements are not made in the course of the pleadings or otherwise. When a statement is made to a party and such statement is brought before the Court showing admission of liability by an application filed under Order XII, Rule 6 and the other side has sufficient opportunity to explain the said admission and if such explanation is not accepted by the Court, we do not think the trial Court is helpless in refusing to pass a decree. We have adverted to the basis of the claim and the manner in which the trial Court has dealt with the same. When the trial Judge states that the statement made in the proceedings of the Board of Directors meeting and the letter sent as well as the pleadings when read together, leads to unambiguous and clear admission with only the extent to which the admission is made is in dispute. and the Court had a duty to decide the same and grant a decree. We think this approach is unexceptionable.

6. The powers under Order XII, Rule 6 of the Code has to be exercised judicially on the facts and circumstances of each case. The admission on the basis of which the

Court wishes to pass a decree has to be unambiguous, clear and unconditional. There is no doubt that in a suit there can be more than one decree passed at different stages and each decree being separate and independent is enforceable in accordance with law, was the principle stated by (1970) 3 SCC 124 : AIR 1971 SC 1081 Chanchal v. Jalaluddin. Admission understood in its common parlance still must be a specific admission. There is very fine distinction between unambiguous and specific admission on the one hand and vague averments of facts which, if proved, could even tantamount to an admission on the part of a party to the suit. The Court has to consider the need for passing a decree on admission under these provisions only in the cases of first category and normally should decline in the cases of the later category.

7. The term „Admission in section 70 of the Evidence Act relates only to admission of a party in the course of the trial of the suit and not to the attestation of a document by the party executing it. The essential feature of admission is that it should be „Concise and deliberate act . It must not be something which was not intended and was not the intention of the party. Pre-requisite to admission are unconditional, unambiguous and intend the same to be read and construed as admission. The scope of admission of a claim is also explained under Order DC, Rule 8 of the Code of Civil Procedure, which contemplates that there must be a claim as laid down in the plaint which is admitted, for the ground stated therein and not simply an admission of cause of action. The legislative intent is clear from the provisions of the Code that an admission has to be unambiguous and clear. The Black's Law Dictionary explain the word „Admission as follows:

"admission: Any statement or assertion made by a party to a case and offered against that party; an acknowledgment that facts are true. Admission against interest. A person's statement acknowledging a fact that is harmful to the person's position as a litigant. An admission against interest must be made either by a litigant or by one in privily with or occupying the same legal position as the litigant".

8. It is also a settled principle of civil jurisprudence that judgment on admission is not a matter of right and rather is a matter of discretion of a Court. Where the defendant has raised objection which will go to the very root of the case, it would not be appropriate to exercise this discretion. The use of the words „May and „make such orders or „give such judgment spells out that power under these rules are discretionary and use of discretion would have to be controlled in accordance with the known judicial cannons. The cases which involves questions to be decided upon regular trial and the alleged admissions are not clear and specific, it may not be appropriate to take recourse to these provisions. In the case of Pariwar Sewa Sansthan v. Dr. (Mrs.) Veena Kalra, AIR 2000 Delhi 349 the Court examined at length the provisions and the need for an admission to be unequivocal and positive. The admission would obviously have the consequences of arriving at that conclusion without determination of any question and evidence. The Court while relying upon the case of Balraj Taneja v. Sunil Madan, (1999) 8 SCC 396: AIR 1999 SC 3381 and Dudh Nath Pandey v. Suresh Chandra Bhattasali, (1986) 3 SCC 360 :

AIR 1986 SC 1509 held as under:

"In Razia Begum v. Sahebzadi Anwar Begum it was held that Order 12 Rule 6 has to be read along with the proviso to Rule 5 of Order 8 that is to say, notwithstanding the admission made by the defendant in his pleading, the Court may still require the plaintiff to prove the facts pleaded by him in the plaint.

Thus, in spite of admission of a fact having been made by a party to the suit, the Court may still require the plaintiff to prove the fact which has been admitted by the defendant. At this stage it would be useful to recall some factual contentions emerging from the pleadings: In 1995 the appellant/defendant was asked to vacate and hand over possession of the suit premises, on the ground of the violation of the terms of the lease; On 25th May, 1996 a notice was alleged to have been served upon the defendant, requiring it to vacate the premises, on 12th September, 1996, tenancy is alleged to have expired by efflux of time and on 8th September, 1996, telegraphic notices were also alleged to have been served upon the defendant. The defendant had pleaded that they were the contractual tenants in respect of the basement since 12-9-1990 and in respect of ground floor since 29-11 -1985; that the lease deeds dated 12-5-1994 were never acted upon and were sham documents; two tenancies existed in respect of the ground floor and two tenancies existed in respect of the basement and plaintiff Nos. 1 and 2 used to get separate cheques in their individual names, in respect of each of these portions. In fact, the plaintiffs did not deny the fact that they had been receiving the rent separately in their respective names, with regard to the ground floor and basement tenancies. However, it was pleaded that in 1995, the defendants started issuing two separate cheques in the name of each of the plaintiffs for their convenience. On the basis of these pleadings trial Court, inter alia, framed specific issues that whether the defendant is a contractual tenant or not and whether the lease was validly terminated or was terminated by efflux of time?

The question whether defendant became contractual tenant after 1995, when they were called upon to vacate the premises on the ground of alleged violation of the terms of the lease, and effect of the circumstances leading to the acceptance of the rent by the two plaintiffs individually in their respective names would require trial. These questions could not be determined without evidence and, therefore, it cannot be said to be a case of "unequivocal" and clear positive admission, which is an essential requirement of law for a decree on admission. Learned trial Court instead of concentrating on the question that whether there was any admission on the part of the defendant or not in its pleadings or elsewhere, proceeded to adjudicate upon some of the issues on merits by observing that the pleas raised by defendant are unbelievable, which could not have been done. There being triable issues raised going to the root of the case, the trial Court ought to have proceeded to try the suits and returned findings on merits. The impugned judgment and decrees are thus liable to be set aside and the suits deserve to be remanded for trial in accordance with law".

5. It will be further useful to make a reference to a judgment of this Court in Western Coalfields Ltd. v. Swati Industries, 2004 (1) Bom. C.R. 322 where the Court took the view that admission made by the parties has to be absolute and unconditional and where in the written statement it had been specifically stated that in terms of another contract, the said amount had already been appropriated. This is not an unqualified admission on part of defendant which would invite a decree against it for the said amount. Nature of admission is neither conclusive to invite order under Order 12, Rule 6 of Civil Procedure Code nor would operate as estoppel against defendant under section 115 of Evidence Act. The provision of Order XII, Rule 6 of the Code contemplates an admission of fact and such admission could not be inferred

6. In the present case, the appellants had relied upon the letters written by the respondents to the Insurance Company or to the Police Authorities, that related to the claim which included the claim regarding furniture belonging to the appellants. In the written statement filed, the respondents have denied their liability. They have made out the case of bailment in terms of sections 148, 151 and 152 of the Indian Contract Act and denied that they have any liability towards the appellants for the alleged loss. According to the appellants even if it was considered to be a case of bailment, still the liability would be there as it is for the respondents to show that they had taken all proper care and precaution for use of the material and furniture given to them on hire. This issue can only be determined during the trial. At best these documents including the claim made to the Insurance Company can be termed as partial admission to the extent of value of the goods but it cannot be inferred from these documents that the respondents have admitted their liability to pay for the losses and make good the amount of loss claimed by the appellants. These are the matters which can be decided by the Court finally only after the parties have been given an opportunity to lead evidence in support of their case. In other words, unambiguous admission of liability would be a pre-requisite for decreeing any amount. The admission at best can be treated as a partial admission of the value of the goods and nothing more. The liability to make good the losses is de hors the value of the goods. The learned Single Judge while rejecting the application noticed that the respondents would be in the position of bailee and as such would be bound to take as much care of the goods bailed to them as a man of ordinary prudence would under similar circumstances, take of his own goods of the same bulk, quantity and value as the goods bailed under the provisions of section 151 of the Indian Contract Act. Further the learned Single Judge held that the appellants would have to establish the lack of care, if at all, on the part of the respondents in respect of damage to the furniture hired by them. This reasoning of the learned Single Judge is in consonance with the provisions of sections 148 and 151 of the Indian Contract Act, 1872. Under section 152 of the Indian Contract Act, the bailee in absence of any special contract is not responsible for the loss, destruction or deterioration of the thing bailed, if he has taken due amount of care described under section 151. It would be a matter which would require consideration of the Court during the course of the trial.

7. In the same Notice of Motion No. 2561 of 2007, the Applicants had also claimed certain interim orders while titling the application as for decree on admission. It is a settled principle of law that the Order XII, Rule 6 of the Code cannot be used where vexed and complicated questions or issues of law arise and it does not contemplate passing of interim orders. Reference in that regard can be made to the case of Manisha Commercial Ltd. v. N.R. Dongre, AIR 2000 Delhi 176 as well as to a judgment in the case of Gorivelli Appanna v. Gorivelli Seethamma, AIR 1972 A.P. 62.

8. In light of this position of law and nature of the documents referred to by the appellants, we have no hesitation in holding that it was not a case for passing a decree on admission.

9. For the reasons stated above, we find no merit in the Appeal and the same is accordingly dismissed, with no order as to costs."

44. In the instant case, the judgment as rendered by the learned Trial Court is based on two considerations as mentioned above. Coming to the first consideration, i.e. the appellant society does not have any authorized representative, this Court is of the view that the same is entirely based upon the findings of the various Courts in the suit bearing CS no. 7634/2016 filed by one Mr. Murali Chowdhry against Mr. Laxman Chowdhry.

45. As per the relevant material, i.e. the order dated 27 th August, 2016 passed by the learned ADJ-04, South district, Saket Courts, New Delhi in CS no. 7634/2016, judgment dated 14th October, 2016 passed by the Co- ordinate Bench of this Court in RFA bearing no. 784/2016 and order dated 16th December, 2016 passed by the Hon'ble Supreme Court in SLP(C) no. 36062/2016' Mr. Pathania and Mr. Dutta were not a party to the said suit and the proceedings in the same were for different cause of action arising between the different parties.

46. The relevant extracts of the recall application filed by Mr. Pathania in CS no. 7634/2016 for recall of the order dated 27th August, 2016 also depicts that the suit was dismissed and no party was granted any relief.

47. Furthermore, it is also clear that the documents/relevant records pertaining to the CS no. 7634/2016 were summoned by the learned Court below suo motu and no party to the suit referred to the same.

48. It is an admitted position that the instant suit before the learned Court below was filed for mandatory injunction against the alleged illegal occupation by the respondent no.1 i.e. the pujari employed initially for the caretaking of the temple managed at the suit property by the appellant Society.

49. It is also undisputed that the plaint filed before the learned Trial Court was amended subsequently to seek same reliefs against the legal heirs of late Sh. Gurcharan Singh Sethi, who allegedly attempted to demolish the temple erected thereon.

50. The material on record as placed by the parties herein depicts that the CS no. 7634/2016 was filed by Mr. Murali Chowdhry seeking declaration that he and his group members are the real members of the appellant Society, however, Mr. Murali Chowdhry was disentitled to represent the appellant Society, therefore, the issue regarding the representation of the Society attained finality where Mr. Pathani and Mr. Dutta were never barred from representing the appellant Society.

51. The above-mentioned factum does not constitute as the essential ingredient to hold that the appellant society does not have any authorized representative, rather the same only depicts that one

Mr. Murali Chowdhry is disentitled from representing the appellant society.

52. It is no doubt that earlier, the Court had substituted Mr. Pathania with Mr. Murali, however, pursuant to the decision taken in the GBM of the appellant society, both Mr. Pathania and Mr. Dutta had duly filed applications for their impleadment as the authorized representatives.

53. Therefore, at this juncture, it is apposite to state that the learned Court below erred in relying upon the same to hold that the appellant Society is without any authorized representative whereas the order passed in the above said civil suit only pertains to one Mr. chowdhry, who is unrelated to the proceedings before the learned Trial Court in the matter pending appeal herein.

54. Now coming to the question of whether Mr. Pathania and Mr. Dutta are the authorized representatives of the appellant Society or not. For the same, it is imperative for this Court to refer to the documents clarifying the position of the parties.

55. One such relevant document is the order dated 4th December, 2020 bearing no. ROS(SE)/57/66/1973/1187 passed by the Registrar of the Societies, New Delhi. The extracts of the said order reads as under:

> On perusal of aforesaid representations and earlier representation dated 21/09/2020 submitted by the applicant, it has been observed that:-
>
> (a) The original records of Aparna Ashram Society (registration no.S-5766 of the year 1973) registered under the Societies Registration Act, 1860 is not available in the office of Registrar of Societies and as per the letter No.S/5766/rfs/2008/689 dated 20/06/08 available in the society file, the main file is missing prior to 28/06/1978 and same was also intimated to the Supdt. Of Police:CBI:SPE:SIC vide letter No. S/5766 dated 28/06/78.

But for reconstruction of the file hearings were carried out through various years.

(b) Further, as per the documents available in the society file maintained in this office, the then Registrar of Societies conducted an enquiry into the rival claims of the parties and the then Registrar of Societies directed both parties to submit their documents and also to produce the original documents available with them. Shri K. S. Pathania produced all the original documents available with the Governing Council before the then Registrar of Societies. However, the Shri Laxman Chaudhary failed to produce any original document before the then Registrar of Societies in support of his claim pertaining to the Aparna Ashram Society. In the order sheet dated, 12.04.2001, the then Registrar of Societies has observed that both parties were directed to produce various documents/registers in their possession in support of their contentions. However, Sh, Laxman Chaudhary could not produce the requisite documents. In the next order dated 15.05.2001, the then Registrar of Societies has observed that neither Sh. Laxman Chaudhary nor any person appeared on his behalf and the record was also not produced. The then Registrar of Societies has observed that Laxman Chaudhary has no locus-standi in the case. Sh. K.S. Pathania had filed an application for

obtaining certified copy of the list of governing council and certified copy of the registration certificate of Aparna Ashram Society, however the then Registrar had directed Sh. K.S. Pathania to obtain the directions from the Hon'ble Court in this regard as the dispute is pending between the parties. Sh. Kashmir Singh Pathania filed writ petition No.283/2002, titled as 'Kashmir Singh Vis. Registrar of Societies' before the Hon'ble Delhi High Court and in the order dated 15.01.2002, the Hon'ble High Court had directed the Registrar to issue the certified copy of the documents as requested by Sh. K.S. Pathania.

(c) The applicant (Sh. K.S, Pathania) has earlier submitted/enclosed Hon'ble High Court of Delhi orders dated 17.12.2019 in ITA matters Nos. 391, 392, 396, 397, 398, 401, 402, 407, 400, 399, 394, 405, 406, 469 of 2018 and Hon'ble ITAT, Delhi order dated 06/01/2020 in ITA No.3153/DEL/2014(Assessment Year:1982-83] in support of his claim that applicant had/has been pursuing the cases on behalf of the Society before Civil Courts/Income Tax Authorities, As per the aforesaid judgment and records submitted with representations in this office, they are the persons, who are carrying the activities of the Aparna Ashram society.

(d) Further on consideration of the above representation, the entire record maintained at this office pertaining to Aparna Ashram Society and correspondences, letters and orders have been examined in view of Representation dated 22.10.2020 of Mr. K. S. Pathania. It has been observed that Sh. K.S. Pathania has also stated in his representation dated 21/09/2020 that "Murli Chaudary, Renu Chaudhary, Nand Kishore, K. K. Gupta had been expelled from Aparna Ashram Society vide resolution dated 18.10.2015" and has further enclosed list of General Body and Governing Council since 1994 to 2019-20 (for the year 2019-20 names of Sh. Subhash Dutt, President, Sh. B. S. Pathania, Director/Member Governing Council, Sh. S.P. Verma, Director/Member Governing Council, Sh. K. S. Pathania, Director/Member Governing Council, Sh. Ashok Kumar, Member/General Body, Sh. S.K. Bali, Member/General Body, Sh. Bharat, Member/General Body, Sh. Himanshu Sharma, Member/General Body have been mentioned).

(e) On examination of records, it reveals that Aparna Ashram Society was registered in year 1973-74 under the Societies Registration Act, 1860 bearing No. 5766/73-74. As per the Rules & Regulations of aforesaid society submitted by the applicant that Swami Dhirender Bharamachari was the Founder Director and only Life Member of Aparna Ashram Society.

(f) After the death of Swami Dhirender Bharamacharl (Founder Member of Aparna Ashram Society) on 09.06.1994, various persons tried to claim Membership and Member of Governing Body and President of the said Aparna Ashram Society. However, in the meantime, as per noting order dated 08.09.2000, it becomes clear that the entire record from this office pertaining to this Society was obtained by C.B.I. and thereafter the Original Files had never returned from the office of C.B.I. despite efforts by this office.

(g) In the Noting order dated 30.08.2011, the then Registrar of Societies has observed that applicant Mr. K. S. Pathania has submitted the List of Governing Body for the year 1973 onward alongwith Minutes of Meeting etc. However, the then Registrar of Societies further asked from Mr. K. S. Pathania to submit original documents as per Noting order dated 20.10.2011, and in response, the

present applicant Mr. K. S. Pathania submitted following documents in Original to the then Registrar of Societies:

Register of Minutes of Book: -

From 08.01.1990 to 17.10.1996, From 04.05.1997 to 27.08.2000, From 02.09.2000 to 25.03.2010, From 26.04.2010 to 30.05 2011.

(h) As per the Note of the then Registrar of Societies Dated 25.08.2014, it was observed that Mr. K. S. Pathania has shown original records pertaining to induction of general body members and also it was observed that Mr. K. S. Pathania has filed the Income Tax Tribunal Appeals and record to that effect has been submitted to this office.

(i) In addition to Office Order pertaining to Aparna Ashram Society, the copies of various Income Tax Appeals of 2014- 15 pertaining to Assessment Year commencing from 1979-80 onwards and this office has also in receipt of Order Dated 29.09.2017 passed by Income Tax Appellate Tribunal whereby all appeals of Aparna Ashram Society were allowed and the all appeals were contested on behalf of Mr. K. S. Pathania as Authorized Representative and Mr. Subhash Dutt, Advocate and Member of Governing Council of the Society.

(j) That the applicant (Sh. K.S. Pathania) has earlier submitted/enclosed Hon'ble Suit no CS.No.68/2012 Titled as "Aparna Ashram Vs Mohan Jha & Ors, in which Shri Laxman Chaudhary filed an application under order 1 rule 10 Civil Procedure Code 1908 before Hon'ble Inderjeet Singh ADJ-03, South Saket claiming himself to be the president of Aparna Ashram society but in order dated 24.09.2011 it is held that applicant/Laxman Chaudhary is not a necessary party to the suit, the applicant is dismissed for the following reasons:-

(i) There is no documentary record that he is an elected president of the plaintiff/ashram.

(ii) There is no plausible reasons explained that if certain things are supposed to be in his personal knowledge, he is to be treated to be the necessary party. The application does not decipher whether the applicant Laxman Choudhary wants to be arrayed as plaintiff or the defendant.

(iii) Plaintiff is master and author of its is whom is to be pleaded party within the domain of plaintiff. The plaintiff even opposes locus-standi of the applicant, there is no question of arraying him as plaintiff and no relief is claimed against the applicant/Laxman Chaudhary, he cannot be arrayed as defendant.

(iv) Prima facie the rules and regulations read with the memorandum of association of the Aparna Ashram, the governing Council is to look after the part of institution or withdrawal of legal proceedings, the applicant/Laxman Chaudhary has no role to play

under these regulations.

Accordingly, application stand disposed off.

(k) After dismissal of aforesaid case, Mr. Laxman Chaudhary filed a review application U/S 114 r/w 151 CPC 1908 before Hon'ble Sandeep Yadav ADJ- 06, Saket Court, same was dismissed with the reasons that the present case applicant has not been able to show that the order dated 24.09.2011 was obtained by fraud. Therefore, these judgments will not help the applicant. In (2009) 14, SC Cases 063 Inderchand Jain vs Motilal it was held that "the power of review can be exercised for the correction of the mistakes but not to substitute a view." It was further held that, "such powers can be exercised within the limits of the statute dealing with the exercise of power. The review cannot be treated like an appeal disguise." The court finds no merit in the application u/s 114 of CPC. Same is accordingly dismissed.

On the other hand, Mr. Alok, Mr, Murll Chaudhary & Others have filed a Civil Suit No. 7634/16 titled "Alok and Others Vs. Laxman and Others" before ADJ- 04 (South), Saket Court, New Delhi. Thereafter, Immediately an R.F.A. No. 784 of 2016 was filed by said Mr. Alok in Delhi high Court and same was dismissed on 04.10.2016. Again, a Special Leave to Appeal (C) No 36062/2016 was preferred before the Hon'ble Supreme Court of India and same was accordingly got dismissed. Further, in relation to this matter, Hon'ble ADJ- 04(South), Saket Courts, New Delhi has issued order dated 29/04/2017(on, the application filed by Sh. K.S. Pathania under Section 151 CPC in Suit No.7634 of 2016), in which it has been held by the Hon'ble ADJ-

04(South), Saket Courts, New Delhi that "It is also Important to mention here that the Civil Suit No. 7634/2016 titled as Alok & Ors vs. Laxman & Ors In which judgment dated 27.08.2016 was passed, was dismissed and no relief was granted to either party".

(l) Further, on the basis of Application dated 21.09.2020 filed by Mr. K. S. Pathania, the earlier letter dated 30.01.2020 sent by this office to Income Tax Department has been reviewed by this office vide letter dated 07.10.2020 sent by this office to Income Tax Department.

In view of the above and various facts submitted by the applicant in his representation dated 21/09/2020 & 22/10/2020, the claim of the applicant regarding its members mentioned in representation dated 22/10/2020 being the General Body and Governing Council of the Aparna Ashram Society for the year 2019-2020 having the mandate to carry the activities of the Aparna Ashram society is as under:-

General Body

i) Shri Subhash Dutt

ii) Shri B.S. Pathania

iii) Shri S.P. Verma

iv) Shri K.S. Pathania

v) Shri Ashok Kumar

vi) Shri S.K. Bali

vii) Shri Bharat

viii) Shri Himanshu Sharma Governing Council

(i) Shri Subhash Dutt President

(ii) Shri B.S.Pathanla, Director/Member of Governing Council

(iii) Shri S.P. Verma Director/Member of Governing Council

(iv) Shri K.S Pathanla Director/Member of Governing Council On the basis of aforesaid facts, the above General Body and Governing Council of the Aparna Ashram Society (Registration No. S-5766/1973-74) is affirmed and certified copies be issued accordingly.

56. Upon perusal of the aforesaid extracts, it is made out that the learned Registrar had duly mentioned the details regarding the members of the appellant Society where Mr. Pathania and Mr. Dutta's name finds mention with their respective positions in the appellant Society.

57. It is also pertinent to note that even though the learned Trial Court casted doubt regarding the authenticity of the same and termed it illegal, this Court is of the view that since the same was not under challenge before the learned Court below, the said observations ought not to have been passed.

58. It is a well settled position of law that the Courts are duty bound to confine to the pleadings and cannot adjudicate an issue alien to the pleadings.

59. In the instant case, the adjudication of the issue on the basis of the said order as passed by the learned Registrar of Societies can be termed as excess of the jurisdiction by the learned Court below, hence, the said observations do not meet the criteria to uphold the same.

60. Furthermore, the legality of the order dated 4th December, 2020, was tested by the division bench of the Punjab and Haryana Court in CACP 11/2024 and the Court relied upon the said document to arrive at the conclusion for adjudication of dispute between the parties and thereby, passed the order dated 31st July, 2024.

61. Therefore, the order dated 4th December, 2020 passed by the Registrar of the Societies is a legally sound order and the validity of the same cannot be tested without a challenge made to it.

62. At last, this Court deems it appropriate to determine the relevance of the case laws cited by the learned senior counsel for the appellant to supplement his arguments.

63. Firstly, the learned senior counsel cited the judgment rendered by this Court in the case of Krishna Kumari v. Sunil Kumar Goel & Anr 2014 SCC OnLine Del 4621 whereby, the settled position of law regarding judgment on admission was discussed. The relevant paragraphs of the said judgment reads as under:

> "18. The purpose of Order 12 Rule 6 CPC is to avoid waiting by the plaintiff for part of the decree when there is a clear, unequivocal, unambiguous and unconditional admission of the defendant in respect of the claim of the defendant. The rule only secures that if there is no dispute between the parties, and if there is on the pleadings or otherwise such an admission as to make it plain that the plaintiff is entitled to a particular order or judgment he should be able to obtain it at once to the extent of admission. But the rule is not intended to apply where there are serious questions of law to be asked and determined.
>
> 19. Likewise where specific issues have been raised in spite of admission on the part of the defendants the plaintiff would be bound to lead evidence on those issues and prove the same before he becomes entitled to decree and the plaintiff in that event cannot have a decree by virtue of provision of Order 12 rule 6 CPC without proving those issues. The case of State Bank of India v. Midland Industries AIR 1988 Delhi 153 is relevant in this regard.
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> 20. In Manisha Commercial Ltd. v. Shri N.R. Dongre 85 (2000) DLT 211 it was observed that "Where facts are not in dispute, and the legal contentions can easily be decided, a judgment under Order XII can be appropriately delivered."

64. Another case relied upon by the learned senior counsel for the appellant Society is the judgment given by the Co-ordinate Bench of this Court in Satish Swaroop & Anr. v. Nipon Dholua 2023 SCC OnLine Del 8034, whereby it was held as under:

> 62. There is no doubt that Rule 6 of Order XII of the CPC, has been couched in a very comprehensive manner.

However, before a court can act under Rule 6 of Order XII of the CPC, the admission must be clear, unambiguous, unconditional and unequivocal. Furthermore, seeking a judgment on admissions made by a defendant under Order XII Rule 6 of the CPC, is not a matter of right rather the same is a matter of discretion of the Court; no doubt such discretion has to be exercised judicially and on the basis of the facts of the case at hand.

63. If a case involves questions which cannot be conveniently disposed under this rule, the Court is free to refuse to exercise its discretion in favor of the party invoking it. It is not in each case where Order XII Rule 6 of the CPC, is invoked that the Court is obliged to pass a decree as the same would

depend upon its own peculiar facts.

64. It is peculiar to note that where the defendants have raised objections which go to the very root of the case, it would not be proper to exercise this discretion and pass a decree in favor of the plaintiff. The purpose of Order XII Rule 6 of the CPC, is to avoid the pendency of a suit, when there is a clear, unequivocal, unambiguous and unconditional admission by the defendant in respect of the claim of the plaintiff.

65. The rule only secures that if there is no dispute between the parties, and if there is, on the pleadings, or otherwise, such an admission that crystallizes that the plaintiff is entitled to a particular order or judgment he should be able to obtain it at once, to the extent of such admissions.

66. However, the rule is not intended to apply where there are serious questions of law which are to be asked and determined. Likewise, where specific issues have been raised in spite of admission on the part of the defendants, the plaintiff would be bound to lead evidence on those issues and prove the same before he becomes entitled to the decree and the plaintiff in that event cannot have a decree by virtue of the provisions under Order XII Rule 6 of the CPC, without proving those issues.

67. The Hon'ble Supreme Court in the case titled as Charanjit Lal Mehra v. Kamal Saroj Mahajan, (2005) 11 SCC 279, has held that Order XII Rule 6 of the CPC, has been enacted for a specific purpose, which is to expedite the trials. If there is any admission on behalf of the defendants or any admission that can be inferred from the facts and circumstances of the case without any dispute, then, in order to expedite the proceedings, the said case could be disposed of.

68. Further, the power under the said provision is not only discretionary but also requires exercise of caution, and unless there is an ambiguity in the admission, the Court may pass a judgment. The Hon'ble Supreme Court in the judgment of S.M. Asif v. Virender Kumar Bajaj, (2015) 9 SCC 287, had delved into the aspect of the extent of the Court's discretion to exercise its power under Order XII Rule 6 of the CPC. The Hon'ble Court observed as follows:

> "8. The words in Order 12 Rule 6 CPC "may" and "make such order ..." show that the power under Order 12 Rule 6 CPC is discretionary and cannot be claimed as a matter of right. Judgment on admission is not a matter of right and rather is a matter of discretion of the court. Where the defendants have raised objections which go to the root of the case, it would not be appropriate to exercise the discretion under Order 12 Rule 6 CPC. The said rule is an enabling provision which confers discretion on the court in delivering a quick judgment on admission and to the extent of the claim admitted by one of the parties of his opponent's claim."

69. It is trite law that when a Civil Court deals with an application under Order XII Rule 6 of the CPC, the Court shall not only look into the pleadings but also the documents annexed thereto, in order to ascertain the position of the purported „admissions emerging from the pleadings and evidence on record of such Civil Court.

70. This Court is of the considered view that to make an order or to pronounce a judgment on admissions is at the discretion of the Court. Firstly, the word „may is used in Order XII Rule 6 of the CPC, and not the word „shall which prima facie shows that the provision is an enabling one. The provisions of Rule 6 of Order XII of the CPC, are discretionary and not mandatory or obligatory in nature and it is not incumbent on the Court to make an order or to pronounce a judgment in favour of the plaintiff in all cases on the basis of such admissions by the defendant.

71. It is also clear that when a defense is set up and it requires evidence for the determination of the issues, then the provisions of Order XII Rule 6 of the CPC, are not applicable and therefore, a judgment cannot be passed in this regard. Accordingly, the pleadings of parties are required to be considered and scrutinized to reach to the conclusion to pass such judgment as sought, on the basis of the alleged admissions.

72. The admissions need not be made specifically, particularly, or expressly, and could be constructive admissions also. The test, therefore, is first, whether admissions of facts arise in the suit, second, whether such admissions are plain, unambiguous and unequivocal, third, whether the defense set up is such that it requires evidence for determination of the issues and fourth, whether objections raised against rendering the judgment are such which go the root of the matter or whether these are inconsequential, thereby, making it impossible for the party to succeed even if entertained. The said view has been enunciated by the Hon'ble Supreme Court in the judgment passed in Hari Steel & General Industries Ltd. v. Daljit Singh, (2019) 20 SCC 425 and reaffirmed in Satish Chander Ahuja v. Sneha Ahuja, (2021) 1 SCC 414.

65. Upon perusal of the both cases, it is clear that the judgment on the basis of admission needs to meet the test as crystalised in the above said cases.

66. Briefly stated, the test with respect to the admission firstly includes, the admission of fact in the suit, secondly, the said admissions should be plain, unambiguous and unequivocal, and lastly, the objections raised against rendering of the judgment needs to go to the root of the matter which ultimately makes it impossible for the party to succeed lateron.

67. The application of the above said test in the factual matrix of the instant case depicts that the learned Court below did not abide by the settled position of law in holding that the case of the appellant Society does not hold any water due to non-representation from the Society.

68. The second reason assigned by the learned Court below also suffers from material illegality as the lease deed as termed to be unchallenged has already been challenged in a separate suit as the same raises separate cause of action, therefore, the same cannot be a reason for dismissal of the suit filed for separate reason.

69. Therefore, this Court is of the view that the learned Court committed an error of law in dismissing the suit under Order XII Rule 6 of the CPC.

CONCLUSION

70. In the instant case, the appellant Society has preferred the instant appeal against the impugned order primarily on the ground that there was no admission on part of any party to render the suit non-triable.

71. As discussed earlier, the judgment under Order XII Rule 6 of the CPC can only be passed if there are unequivocal, clear, unambiguous and or otherwise, and if it is found that there are certain defenses or objections that give rise to triable issues, it is only just that the issues raised in the suit be decided after conducting a proper trial.

72. The aforesaid provision is an enabling provision, therefore, it is neither mandatory nor pre-emptory, and however, it is discretionary. Hence, the Court, on examination of such facts and circumstances, must exercise its independent judicial discretion, keeping in mind that a judgment on admission is a judgment without trial.

73. It is also apposite to reiterate that in order to pass a judgment on admissions, the entire contents have to be taken as a whole and picking part averments as form of admissions is not the mandate.

74. Even though the Courts have the discretionary power to pass a judgment on admission, the same needs to be in consonance with the conditions laid down in the abovesaid provision.

75. Taking into consideration the observations made in the preceding paragraphs, it is held that the learned Trial Court erred in rendering a judgment on the admissions for the following reasons:

> a) The issues arising in the dispute were triable issues as the claim made by several factions depicts different picture and the same can only be clarified after a proper trial by the learned Court below.
>
> b) The ruling by the Courts in the case stemming from CS 7634/2016 ought to not have any impact on the proceedings in the present case as the said case arises out of a dispute between different parties.
>
> c) The order dated 4th December, 2020 bearing no.

ROS(SE)/57/66/1973/1187 passed by the Registrar of the Societies was termed invalid without any challenge made to the said order by any party.

76. As per the settled position of law, admission of the fact or fact-in issue must be clear from the record itself and cannot be left to the interpretative determination by the Court, and in the present case, the learned Trial Court erred in doing interpretative determination of the admissions alleged by the plaintiff/respondent.

77. Therefore, in view of the foregoing discussions, this Court is of the view that the learned Court below erred in passing the impugned order and thus, this Court deems it appropriate to exercise its appellate jurisdiction.

78. Accordingly, in view of the above facts and circumstances, the impugned order/judgment dated 4th December, 2021 passed by the learned ADJ, South-East District, Saket Courts, Delhi in C.S. No. 7447/16 is set aside and the instant appeal is allowed. In light of the same, this Court deems it appropriate to pass the following directions:

1. The order dated 4th December, 2020 bearing no.

ROS(SE)/57/66/1973/1187 passed by the Registrar of the Societies is upheld in view of the observations made hereinabove.

2. The instant matter is remanded back to the learned Trial Court and the learned Court is directed to adjudicate the dispute/C.S. No. 7447/2016 afresh, after considering the contentions of both sides along with the impleadment application filed before this Court on behalf of „Aparna, the Deity as well as any other disputes, if any; and decide the same expeditiously, preferably within six months, without giving unnecessary adjournments to either of the parties in accordance with the law.

3. It is made clear that the observations made by this Court shall not affect the merits of the dispute.

4. All the parties are directed to maintain the status quo till the disposal of the civil suit before the learned Trial Court.

79. Accordingly, the instant appeal is disposed of. Pending applications, if any, stands dismissed.

80. The judgment be uploaded on the website forthwith.

(CHANDRA DHARI SINGH) JUDGE NOVEMBER 8, 2024 RT/av/ryp Click here to check corrigendum, if any